

26STCV08941 26STCV08941

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Case Number: 26STCV08941 Hearing Date: August 4, 2026 Dept: 14

SUPERIOR COURT OF THE STATE OF
CALIFORNIA

FOR THE COUNTY OF LOS ANGELES

DEPARTMENT 14

JANET LARKLY,

Plaintiff,

v.

ALBERTSONS COMPANIES, INC., et al.,

Defendants.

Case No. 26STCV08941

Hearing Date: August 4, 2026

Time:

9:00 a.m.

¿ [TENTATIVE] ORDER

RE:¿

PLAINTIFF'S MOTION FOR LEAVE TO SERVE
ADDITIONAL INTERROGATORIES

I.

Background

On April 30, 2026, Plaintiff Janet Larkly filed her first amended complaint for personal injury alleging she developed mesothelioma from familial and personal use of asbestos-containing talcum powder products throughout her lifetime, including personal use of cosmetic products starting in high school and her mother's use of powder products on her brother and herself starting from infancy. Plaintiff also alleges she was exposed to asbestos-containing materials while at jobsites due to their presence and use by other contractors.

On July 8, 2026, Plaintiff moved for leave to serve additional interrogatories, arguing that she used the ten special interrogatories allowed in asbestos cases to obtain basic information to support her claims and requires three more interrogatories to obtain information about Defendants' affirmative defenses.

On July 22, 2026, Defendant Block Drug Company, Inc. ("Block") opposed, arguing that this case is no different than other similarly situated asbestos and talc cases, and that Plaintiffs failed to show good cause exists for additional discovery.

The court finds
good cause exists to allow Plaintiff to serve three additional special interrogatories on Defendants for all facts, witnesses, and documents supporting each affirmative defense asserted in the responding defendant's

answer. Accordingly, the motion for leave to serve additional interrogatories is granted.

II.

Discussion

A.

Legal Standard

The court's Discovery Case Management Order ("Discovery CMO") applicable to all asbestos cases provides that "each party may propound special interrogatories, which shall contain no more than ten (10) questions, without subparts. Said special interrogatories may be served at any time after Plaintiff or Defendant has answered standard interrogatories. Plaintiff and Defendant shall respond to the special interrogatories within the time period and in the manner prescribed by the applicable sections of Code of Civil Procedure Sections 2030.010, et seq. Any party may seek leave of Court for additional special interrogatories, upon a showing of good cause by bringing a regularly noticed motion. (July 8, 2022 General Asbestos Litigation Case Management Order, Appendix B-5, p.5.)

A court may grant leave to a party to propound an additional number of special interrogatories for good cause shown. (Code Civ. Proc. § 2030.070, subd. (c).)

B.

Analysis

Plaintiff

"seeks leave to propound three (3) additional special interrogatories which are the equivalent of Form Interrogatory No. 15.1; that is, asking for all facts, witnesses, and document supporting each affirmative defense asserted in the responding defendant's answer." (Motion at p.2.) Plaintiff argues that the standard interrogatories used in asbestos "are largely directed to 'traditional' asbestos exposures such as industrial and friction products, premises, and contractors, and do not include any questions specific to raw talc or talc products." (Id. at p.3.) Consequently, Plaintiff used the 10 special interrogatories allotted under the court's Discovery CMO to ask basic facts about "whether the defendant made, sold, or supplied any talc-containing products; If so, what those products were, and when they were

marketed; The source mines for the talc in those products; How the defendant learned that asbestos could be present in talc; [and] When any warnings were placed on these products and what the warnings said." (Id. at p.3; Halbany Decl., Exh. G.)

In opposition, Block argues that allowing Plaintiff to serve additional interrogatories without allowing Block to do the same would be unfairly prejudicial to Block and other Defendants. (Opp. at p.2.) Block argues that this case is no different from other talc cases and that good cause does not exist for additional interrogatories. (Id.)

The court reviewed the first set of interrogatories Plaintiff served on Defendants in this matter and finds that they reasonably seek information about the products at issue and the basis for Plaintiffs' claims against each Defendant. It is reasonable that Plaintiff is now seeking to discover the facts, evidence, and witnesses supporting Defendants' affirmative defenses. Additionally, there is no evidence that three additional interrogatories will be unfairly prejudicial to Block or any other Defendant. Plaintiff sufficiently demonstrates that good cause exists for the additional interrogatories.

III.

Conclusion

The court finds good cause exists to allow Plaintiff to serve additional special interrogatories on Defendants. Accordingly, the motion for leave to serve additional interrogatories is granted. Plaintiff is ordered to serve no more than three additional special interrogatories without subparts for all facts, witnesses, and documents supporting each affirmative defense asserted in the responding defendant's answer within 10 days of this order.

Plaintiff to give notice.